INDEPENDENT CONTRACTOR AGREEMENT

with

VANCOUVER SCHOOL DISTRICT NO. 37

Agreement Must Be Completed Before Services Begin

1. Parties and Term of Agreement. This Agreement is entered into by and between Vancouver School District No. 37, a municipal corporation (hereinafter"District")and **Adeyemi Stembridge PhD**, (hereinafter "Contractor"). This Agreement will become effective on **11/15/2020**, and will continue in effect through **6/16/2021**.

2. Services to be Performed. The services Contractor agrees to perform are:

350 Hours of Equity Focused Technical Support to Vancouver Public Schools

Contractor will determine the method, details, and means of performing the above-described services. Contractor will provide tools, equipment and supplies, and will work as many hours as may be reasonably necessary to fulfill Contractor's obligations under this Agreement. If the District's, rather than the Contractor's, equipment must be used to satisfactorily provide the services to be performed by Contractor under this Agreement, please explain what will be used and why: **N/A**

Contractor may, at Contractor's expense, use any employees or subcontractors as Contractor deems necessary to perform the services required of Contractor by this Agreement. District shall not control, direct, or supervise Contractor's employees or subcontractors in the performance of those services.

3. Compensation. As total compensation for the services rendered by Contractor under this Agreement, District shall pay Contractor **$105,000.00** for completion of the project and/or services set forth in this Agreement. If compensation is to be based on an hourly rate rather than a flat fee, please explain why: **N/A**

Reimbursement for travel related costs is not to exceed **$0** and is included in the above total amount.

District agrees to pay Contractor such compensation upon satisfactory completion of project and/or services, upon receipt of Contractor invoice which refers to the District Purchase Order Number, and upon verification by a District employee of services performed. Interim progress payments not to exceed 80% may be made to Contractor upon satisfactory completion of tasks as agreed upon in writing by both parties and attached to this Agreement, upon receipt of Contractor invoice which refers to the District Purchase Order Number, and upon verification by a District employee of partial services performed.

It is recognized and agreed that in connection with the services to be performed for District, Contractor may be obligated to expend money for travel or other business expenses, including telephone expenses. Contractor shall be solely liable and responsible for payment of same, and shall indemnify and hold District harmless from claims made by any entity for payment for such expenses incurred.

4. Relationship of Parties. Contractor enters into this Agreement, and will remain throughout the term of this Agreement, as an independent contractor. Contractor agrees that Contractor is not and will not become an employee, partner, agent, or principal of District while this Agreement is in effect. Contractor is not entitled to the rights or benefits afforded to District's employees, including disability or unemployment insurance, worker's compensation, medical insurance, sick leave, or any other employment benefit. Contractor is responsible for providing at Contractor's own expense, disability, unemployment, worker's compensation, and other insurance, training permits, and licenses for Contractor and for Contractor's employees and subcontractors, as required by law.

Contractor agrees to comply with all federal, state, and municipal laws, rules, regulations, and District policies and regulations, that are now or may in the future become applicable to Contractor's business, equipment, and personnel engaged in an operation covered by this Agreement or accruing out of the performance of such operations. Contractor shall indemnify and hold District harmless from claims made by any entity as a result of Contractor's failure to comply. Specifically, Contractor is being provided the following information regarding District Policies and Regulations relating to confidentiality of students records, non-discrimination, and sexual harassment.

> Public schools are governed by state and federal laws and district policies. When independent contractors work with students and staff in our schools, they also must abide by the following directives:
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> Confidentiality: During your association with the school district, you may have access to confidential and sensitive information regarding a child, family, or staff member. This information cannot be shared with persons outside the school district. Student information in our schools is governed by the Family Educational Rights and Privacy Act (FERPA). This federal law prohibits information from a student's educational record being released without prior written parent permission.
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> Child Abuse: If a child you work with shares information that may indicate he or she is abused or in danger, report this immediately to the classroom teacher. If you have questions regarding this issue, please contact the school principal.
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> Non-discrimination: No student or staff person should ever be treated differently, spoken to disrespectfully, or denied services on the basis of race, creed, color, religion, sex, national origin, marital status, sexual orientation, including gender expression or identity, age, families with children, honorably discharged veteran or military status, the presence of any

sensory, mental, or physical disability, or the use of a trained dog guide or service animal. Each student and staff person is to be treated with respect and dignity.

Sexual Harassment: No student or staff person should ever by subjected to inappropriate, unwelcome sexual overtures which interfere with the individual's education or work. Examples of prohibited conduct are unwarranted name calling, comments, touching, jokes, and compliments of a sexual nature.

Contractor is responsible for paying when due all income taxes, including estimated taxes and sales taxes, incurred as a result of the compensation paid by District to Contractor for services under this Agreement. Contractor agrees to indemnify District from any claims, costs, losses, fees, penalties, interest, or damages suffered by District resulting from Contractor's failure to comply with this provision.

The actual performance and superintendence of all work hereunder shall be by the Contractor, but the District may designate a representative or representatives who shall at all times have access to the premises for the purposes of observing tests or inspecting the work performed by Contractor to judge whether such work is being performed by Contractor in accordance with the provisions hereof and to secure the satisfactory completion thereof.

Contractor has a right to work for others during the term of this Agreement. However, Contractor recognizes that compensation from more than one political subdivision of the State of Washington for the same hours worked is illegal.

5. Insurance. Please check one:

☐ Contractor has professional liability insurance in the amount of $_____.

☐ Contractor agrees to voluntarily assume liability because all of the following conditions apply:

- The contract is solely for group training, advice, or guidance for staff or students by an artist, entertainer, musician, educational consultant or other individual whose presence in the district is continually supervised by district staff; and
- The service being provided does not involve any activity, device, product or equipment that could damage district property or cause injury to any person.

_____ Contractor District Representative _____ *(Initials of contractor and district signatory required)*

6. Property Rights of the Parties. All records of the District, whether existing at the time of this Agreement, procured through the efforts of Contractor, or learned by Contractor from any other source, and whether prepared by Contractor or otherwise, shall be the exclusive property of District. Any personally identified information about the District's student records which is gained by the Contractor in the performance of this Agreement shall be considered confidential and not disclosed except by appropriate written consent.

7. Crimes Against Children. If the District determines that the Contractor and/or any employee of the Contractor will have regularly scheduled unsupervised contact with school children during the term of this Agreement, the Contractor, if an individual, and any employee of the Contractor, must provide documentation, **prior to providing the above service**, that he/she has not pled guilty to, or been convicted of, any felony crime involving the physical neglect, injury, death or sexual abuse or exploitation of a minor. Providing District with a copy of the clearance through the process of the Washington State Patrol Identification and Criminal History Background check shall be considered sufficient documentation of the above. Failure of Contractor to comply with this section shall be grounds for the District to immediately terminate this Agreement.

8. Debarment and Suspension. The Contractor certifies that neither it nor its principals are presently debarred, suspended, declared ineligible, or voluntarily excluded from participation in Federal assistance programs under Executive Order 12549. For services provided under this Contract, the Contractor shall also certify that it does not contract with any entity or person who is debarred, suspended, declared ineligible, or voluntarily excluded from participation in Federal assistance programs or any transactions with a federal department or agency. The Contractor shall maintain evidence of compliance in personnel files or with the subcontractor's documents and certify compliance with this provision upon contract signature.

9. Entire Agreement. This Agreement supersedes any and all other agreements, either oral or in writing, between the parties hereto with respect to the hiring of Contractor by District, and contains all of the covenants and agreements between the parties with respect to that hiring in any manner whatsoever. Each party to this Agreement acknowledges that no representation, inducements, promises, or agreements, orally or otherwise, have been made by any party, or anyone acting on behalf of any party, which are not embodied herein, and that no other agreement, statement, or promise not contained in this agreement shall be valid or binding on either party.

10. Amendment. This Agreement may be modified or amended, provided the amendment is made in writing and is signed by both parties.

11. Termination for Breach. If either party fails to comply with the terms and conditions of this Agreement, the other party, upon 30 days prior written notice to the breaching party, may terminate this Agreement with no continuing financial liability to the non-breaching party.

12. Indemnification and Hold Harmless. Contractor agrees to protect, defend, indemnify, and to hold harmless the District, its officers, agents, and employees, from any and all claims and losses resulting from the performance of the contract services and from any and all claims and losses resulting to any person who may be injured by Contractor in the performance of this Agreement.

13. Waiver. The failure of either party to insist on strict compliance with any of the terms, covenants, or conditions of this Agreement by the other party shall not be deemed a waiver of that term, covenant, or condition, nor shall any waiver or relinquishment of any right or power at any one time or times be deemed a waiver or relinquishment of that right or power for all or any other items.

14. Force Majeure. Neither party will be liable for failure or delay to perform obligations under this Agreement, which become practicably impossible because of circumstances that were unforeseeable and beyond the reasonable control of the applicable party. Such circumstances include, but are not limited to, natural disasters or acts of God; acts of terrorism; labor disputes or stoppages; war; government acts or orders; epidemics, pandemics or outbreak of communicable disease; quarantines; and national or regional emergencies. Written notice of a party's failure or delay in performance due to force majeure must be given to the other party no later than ten (10) business days following the force majeure event commencing, which notice shall describe the force majeure event and the actions taken to minimize the impact thereof. All performance dates under this Agreement affected by force majeure shall be tolled for the duration of such force majeure. The parties hereby agree, when feasible, not to cancel but reschedule the pertinent obligations, services and deliverable for mutually agreed dates as soon as practicable after the force majeure condition ceases to exist.

15. Severability. If any provision in this Agreement is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remaining provisions shall nevertheless continue in full force without being impaired or invalidated in any way.

16. No Assignment. Neither this Agreement, nor any interest therein, or claim hereunder, shall be assigned or transferred by Contractor to any party or parties without written approval by District.

17. Headings. The headings in this Agreement are included for convenience only and shall neither affect the construction or interpretation of any provision in this Agreement nor affect any of the rights or obligations of the parties to this Agreement.

18. Execution in Counterparts. This Agreement may be executed in two or more counterparts, each of which together shall be deemed an original, but all of which together shall constitute one and the same instrument. In the event that any signature is delivered by facsimile transmission or by e-mail delivery of a ".pdf" format data file, such signature shall create a valid and binding obligation of the party executing (or on whose behalf such signature is executed) with the same force and effect as if such facsimile or ".pdf" signature page was an original thereof.

19. Governing Law. This Agreement shall be governed by the laws of the State of Washington, and venue shall be in Clark County, Washington.

20. Attorney Fees. If any legal action is commenced or necessary to enforce or interpret the terms of this Agreement, the prevailing party shall be entitled to reasonable attorneys' fees, costs, and necessary disbursements in addition to any other relief to which that party may be entitled.

IN WITNESS WHEREOF, District has by its appropriate officer(s) signed this Agreement and Contractor has signed this Agreement on the date and year indicated below:

WORK UNDER THIS CONTRACT CANNOT BEGIN UNTIL BOTH PARTIES HAVE SIGNED BELOW

VANCOUVER SCHOOL DISTRICT NO. 37

Recommended By:

_____

Janell Ephraim – Chief Equity Office

JPC/Curriculum _____
Location Date

Budget No. **5870.33.7330.0800.0000**

Approved By:

_____

Mike Stromme – Associate Superintendent

_____
Date

INDEPENDENT CONTRACTOR

I have read this Agreement and understand I have the right to have this Agreement reviewed by my attorney or accountant before signing.

Adeyemi Stembridge PhD
Company or Individual's Name

By: _____

Date: _____